



Placement and Residential Licensing Unit

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Case Number: 027607

Date of Incident: 2/16/2025

Date Received: 2/17/2025

Facility Name: Millcreek of Arkansas PRTF

Facility Number: 233

Incident Type: [REDACTED]

Report Description: [REDACTED] ([REDACTED], Parent Custody, [REDACTED]) reported that staff member [REDACTED] grabbed the hood of his hoodie while he was running around in the living unit, which resulted in three petechiae marks on the front of his neck. Nursing notes indicate that the three petechiae marks are approximately 2 inches long. Staff [REDACTED] was immediately placed on administrative leave pending the results of the external investigation. [REDACTED]. The [REDACTED]

Interim Action Narrative: A/O [REDACTED] placed on administrative leave pending investigation.

[REDACTED] **Narrative:** AV is [REDACTED] AO/caretaker is [REDACTED] (staff). PRFC is [REDACTED]. [REDACTED] reported that staff member [REDACTED] grabbed the hood of his hoodie while he was running around in the living unit, which resulted in three petechiae marks on the front of his neck. Nursing notes indicate that the three petechiae marks are approximately 2 inches in length.

Licensing Narrative: 2/18/25-Reviewed for licensing concerns. [REDACTED]
[REDACTED]
[REDACTED]. Email sent to facility to ascertain if there is video of this

incident and to send licensing all witness statements and nursing notes. Visit scheduled as soon as inclement weather clears up. Email received from Chris Butler of Millcreek that there is video and witness statements and nursing notes would be sent to licensing.

2/18/25-Witness Statements and Nursing Notes received and reviewed by licensing.

2/20/25-Facility visited. Video reviewed of incident. Licensing complaint founded. Facility cited 109.1g and 905.9. 2/25/2025, facility filed an appeal on 2/25/2025 regarding standard 905.9.



**Office of Placement and Residential Licensing Unit
Division of Provider Services and Quality Assurance**

P.O. Box 1437, Slot S530, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.682.8155

521 Visit Compliance Report

Licensee: Millcreek of Arkansas PRTF

Facility Number: 233

Licensee Address: 1828 INDUSTRIAL DR
FORDYCE AR 71742-7110

Licensing Specialist: Clayton DeBoer

Person In Charge: Ben Beasley

Record Visit Date: 2/20/2025

Home Visit Date: 2/20/2025

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Regulation Number: 100.109.1.g

Regulation Description: Unprofessional conduct in the practice of child welfare activities shall include, but not limited to the following:

Finding Description: Staff engaged in behavior that could be viewed as physically harmful to children.

Action Due Date: 2025-02-16

Action Due Description: Staff placed on administrative leave pending investigation. If staff employment is retained, staff will re-complete a full TCI Training.

Comply Date:

Sub-Regulation Level 1 Description: Engaging in behavior that could be viewed as sexual, dangerous, exploitative, or physically harmful to children.

Regulation Number: 900.905.9

Regulation Description: Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device, for the purposes of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort, or holding a hand to safely escort a child from one area to another, is not considered a physical restraint.

Finding Description: Staff failed to use minimal force when they restricted the free movement of a resident as they picked the client off the ground and moved them to a chair.

Action Due Date: 2025-02-16

Action Due Description: Staff placed on administrative leave pending investigation. If staff employment is retained, staff will re-complete full TCI Training.

Comply Date:

Narrative:

Facility visited in response to complaint 027607 that staff caused physical harm to a client during an incident.

Video reviewed of incident that occurred in the Deerfield cottage on 2/16/2025. The client goes to the front door of the cottage and bangs the back of his head on the door. Staff can be seen grabbing the client by the arm and begins to escort him, grabbing only his arm away from the door. The client drops to the floor as if dead weight. The client is seen hitting himself in the face. Staff then picks the client up off the floor and carries him, feet barely off the ground, and sits him in a chair. When staff is seen on video picking the client up, it does appear there may be tension on the client's hoodie. Staff did not use proper TCI techniques during the incident, per facility management.

The facility is being cited **109.1g** for "*Unprofessional conduct in the practice of child welfare activities shall include without limitation: (g) Engaging in behavior that could be viewed as sexual, dangerous, exploitative, or physically harmful to children*" as evidenced by the staff grabbing the client by the arm and picking them up off the ground resulting in three petechiae marks on the front of his neck and **905.9** "*Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device, for the purpose of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort them or holding a hand to safely escort a child from one area to another, is not considered a physical restraint*" as evidenced by the staff failing to use minimal force when they restricted the free movement of a resident as they picked the client off the ground and moved them to a chair.

Licensing complaint has been founded.

******* Pursuant to A.C.A. § 9-24-406(e)(3-4): If you believe that the Department's notice of noncompliance is in error, you may ask for reconsideration. The request for reconsideration must be in writing and delivered to the Department by certified mail within twenty (20) business days of receipt of the notice of noncompliance. The request must specify the parts of the notice that are alleged to be in error, explain why you believe those parts are in error, and include documentation to support the allegation of error. Once received the Department shall issue a decision on your request within twenty (20) days after receipt of the request.**

Provider Comments: At Millcreek Behavioral Health, we remain steadfast in our commitment to the safety and well-being of our residents and the integrity of our team. Our staff are trained to prioritize de-escalation and safety interventions that align with best practices and regulatory standards.

In this instance, the staff member attempted to ensure the safety of a patient with an extensive history of self-injury and aggression toward staff. This included responding with self-defense measures and utilizing a physical escort to move the patient to a safer location—without wholly restricting the patient's freedom of movement. What is being labeled as a physical restraint refers to a brief hold lasting approximately four seconds, during which the patient was moved about 10 feet to remove them from the potential for direct harm from another escalated patient.

While another staff member was present on the unit, they were actively engaged in de-escalating another patient at the time. Given the circumstances, the staff member involved made the decision she could with the resources available to her in that moment. There was no intent to harm the patient. However, she did not use an intervention method included in her initial training and acted independently, outside the scope of our policies and expectations. This individual had successfully completed all pre-employment screenings, passed extensive background checks, and underwent rigorous training to meet our high standards. However, her actions deviated from those standards. As a result, the staff member must complete Therapeutic Crisis Intervention recertification before returning to her assigned role.

Millcreek Behavioral Health remains committed to maintaining a safe, respectful, and nurturing environment for all residents and ensuring our staff uphold the highest standards of care.

CCL Staff Signature :



Date: 2/20/2025

Provider Signature :



Date: 2/20/2025